

Plaintiffs George Saba and Jack Saba's motion for summary judgment is DENIED. Plaintiffs' alternative motion for summary adjudication is DENIED.

Request for Judicial Notice

Plaintiff requests judicial notice of the following:

1. Notice of related case in the probate matter, Case no. 2022-01295368, filed on 8/30/23;
2. Declaration of Attorney Cuevas in support of Respondent's Motion for an Order Requiring Petitioner George Saba to Furnish Security on the Ground that Petitioner is a Vexatious litigant, filed in the probate action;
3. Declaration of L. Joseph Hudak in support of Respondent's Motion for Summary Judgment in the Probate action;
4. Declaration of L. Joseph Hudak filed in the probate action on 4/24/25;
5. Ruling on matters taken under submission on June 17, 2024 in the probate action.

The court GRANTS the request pursuant to Evid. Code §452, subd. (d). However, with regards to the declarations (nos. 2, 3, and 4), the Court may not take judicial notice of the truth of the matter stated in these declarations. (*Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 659-660.)

Jurisdiction

First, the court notes that Plaintiffs in this matter are presenting issues that were presented in the related probate matter, case no. 2022-01295368. (See Defendant's Request for Judicial Notice, Exs. 1 and 5).

Generally, the probate court has exclusive jurisdiction to probate and interpret a will, determine entitlement to distribution, and administer and distribute a decedent's estate. (Prob. Code, §§ 8200-8272, 21120-21122, 11700-11705, 9600 et seq., 11600 et seq.) The probate court also has exclusive jurisdiction over proceedings concerning the "internal affairs" of trusts. (Prob. Code, § 17000, subd. (a).) This is true even if the trust is administered outside of probate. (See e.g., *Estate of Heggstad* (1993) 16 Cal.App.4th 943, 951 (Trustee's petition for instructions invoked probate court's jurisdiction to determine whether property was part of estate or was trust property).)

The probate code defines "internal affairs of a trust" to include:

- (1) Determining questions of construction of a trust instrument.
- (2) Determining the existence or nonexistence of any immunity, power, privilege, duty, or right.
- (3) Determining the validity of a trust provision.
- (4) Ascertaining beneficiaries and determining to whom property shall pass or be delivered upon final or partial termination of the trust, to the extent the determination is not made by the trust instrument.
- (5) Settling the accounts and passing upon the acts of the trustee, including the exercise of discretionary powers.
- (6) Instructing the trustee.